

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, AUGUST 05, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**WELLS FARGO BANK v KRISTINA STEVENS
Case No. CL25-06022**

Motion for Judgment on the Pleadings

TENTATIVE RULINGS:

The unopposed motion for judgment on the pleadings by Plaintiff WELLS FARGO BANK is GRANTED. The court takes judicial notice of its January 29, 2026 minute order deeming each request for admission as set forth in the Request for Admissions (Set One) to be admitted. (*Pang v. Beverly Hospital* (2000) 79 Cal.App.4th 986, 990.)

Plaintiff's request for judicial notice attaches a proposed order, not the actual order. The court exercises its discretion to take judicial notice of its own minute order granting the request for admissions. Plaintiff is admonished to pay closer attention to its exhibits.

Judgment is for Plaintiff in the sum of \$5,196.03. Plaintiff may claim costs as authorized by statute and pursuant to the procedures set forth in the Code of Civil Procedure and California Rules of Court.

**ANGEL MATEO HERNANDEZ-RAMIREZ v. ROBERTO CORONA et al.
Case No. CU24-10060**

Petition for Minor's Compromise

TENTATIVE RULING:

The petition for minor's compromise is APPROVED. No appearances are required,
The court is satisfied by petitioner's submissions,

The proposed orders submitted with the petition will be processed forthwith.

NATIONAL HIGH VOLTAGE SERVICES, INC. v. SETON PACIFIC CONSTRUCTION, INC., et al.
Case No. CU25-00863

Motion to Withdraw by The Mazzola Law Office as to Defendants 625 East H. St Development LLC; Casey Anderson; Pacific Construction; Seton, Inc.; Seton Pacific Construction, Inc.; Atlas Underground Construction; Tryzmac, Inc. and Casey Miles Anderson, a co-trustee of the Anderson Family Trust

TENTATIVE RULING:

ORDER TO SHOW CAUSE

The Mazzola Law Office shall provide Casey Anderson with telephonic and email notice of this tentative ruling.

Parties to appear. Casey Anderson shall personally appear or pleadings naming him individually shall be stricken and default permitted to proceed.

The unopposed motions to withdraw from the Mazzola Law Office are GRANTED.

No pro per can represent a trust or corporation. CASEY ANDERSON has been provided notice and opportunity to substitute counsel for the named corporations and/or trust and has failed to do so. It is the court's intent to strike pleadings filed on behalf of each corporation and on behalf of CASEY ANDERSON as co-trustee and to permit defaults to proceed as to the corporate entities.

As to the trust, co-trustee VALJEAN ANDERSON has appeared in this action through counsel and continues to appear through counsel. Her joint answer filed January 9, 2026, remains unaffected.

The withdrawal of the Mazzola Law Office is effective upon service and filing of notice of entry of order following hearing.

C.A. v. VALLEJO CITY UNIFIED SCHOOL DISTRICT and JOHN PAUL ACAC
Case No. CU25-06305

Plaintiff's Motion to Compel Further Responses to Requests for Production

TENTATIVE RULING

Plaintiff C.A. moves to compel Defendant VALLEJO CITY UNIFIED SCHOOL DISTRICT ("VCUSD") to further respond to twenty-one requests for production of documents and five form interrogatories. In the future, moving party shall not file consolidated motions to compel. Multiple motions should not be combined into a single filing. (See Govt. Code § 70617(a)(4) (setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing); see also Weil & Brown, *Civil Procedure Before Trial*, [8:1140.1] at 8F-60 (The Rutter Group 2011) ("Motions to compel compliance with separate discovery requests ordinarily should be filed separately."))

Plaintiff's first amended complaint in this matter alleges that while she was a student at VCUSD's Vallejo High School her teacher and volleyball coach Defendant JOHN PAUL ACAC ("ACAC") sexually abused her. A related case by another individual, A.P., who makes the same allegations, is pending. ACAC has been convicted of offenses involving C.A. and A.P. and pursuant to his plea is now serving a prison sentence.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Plaintiff's counsel's attached declaration in support of the motion states that counsel served the discovery requests at issue on January 8, 2026. (Declaration of Kelly L. Ganci in Support of Motion to Compel Further Responses to Requests for Production ("Ganci Dec.") at ¶ 2.) VCUSD responded on April 16, 2026. (*Ibid.*) Plaintiff called to address VCUSD's objections and refusals to respond but did not reach defense counsel; on May 8, 2026 she wrote a meet and confer letter. (*Id.* at ¶ 3, Exhibit 1.) The parties agreed on the wording of a protective order on March 24, 2026 but VCUSD never provided Plaintiff final authority that it approved the protective order and would consent to filing. (*Id.* at ¶¶ 4-5, Exhibits 2-3.) VCUSD never responded to the meet and confer letter. (*Id.* at ¶ 3.) The instant motion was filed on June 2, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

The court finds Plaintiff made adequate efforts to meet and confer.

Requests for Production. Request for Production #1. VCUSD responded to this request with a statement it would provide all of Plaintiff's student records in its possession; however, Plaintiff states it has not done so. VCUSD's opposition does not assert compliance with its promise. VCUSD must produce the requested documents and provide a privilege log as to any documents withheld due to privilege.

Request for Production #2. Plaintiff seeks all complaints about ACAC's sexual misconduct with her or A.P. (the plaintiff in related case CU25-07225). RFP 2 is duplicative of RFP 1 as to C.A. To the extent that it seeks records about A.P., VCUSD objects on privacy, Federal Educational Rights and Privacy Act ("FERPA"), Education Code § 49077, vagueness, and attorney-client privilege grounds.

It does not appear that C.A. secured a release from A.P. for records related to A.P. A.P. has a right to privacy in records maintained by a school. In this instance, a response could not be sanitized by redacting A.P.'s name. Given this right to privacy, VCUSD could not release responsive records without A.P.'s consent or a court order.

FERPA withholds federal funds from school districts that release education records without the student or a student's parental consent. (*Owasso Independent School District No. I-011 v. Falvo* (2002) 534 U.S. 426, 428.) "Education records" are "records, files, documents, and other materials" containing information directly related to a student and which are "maintained by an educational agency or institution or by a person acting for such an agency or institution." (*Id.* at p. 429; 20 U.S.C. § 1232g, subd. (a)(4)(A).) This definition is much broader than moving party portrays.

The court finds that C.A. and A.P. have each waived their respective rights to assert privacy as to disclosure of records maintained by VCUSD in their individual but related cases and that both parties are entitled to disclosure of each other's respective records in order to advance their related cases. Cross-admissibility of evidence will very much be at issue.

Disclosure is subject to a protective order that any records disclosed may be used only for the purpose of litigation or of the underlying related actions and that materials shall not be disclosed to any third parties unrelated to this litigation.

VCUSD shall produce any non-privileged documents responsive to this request and to the extent privilege is claimed, shall produce a privilege log.

Request for Production #3. This related request seeks documents showing VCUSD's investigation of any complaints about ACAC's sexual misconduct with students, including without limitation Plaintiff and A.P.

To the extent RFP #3 overlaps with RFP#2 and RFP#3, those issues are addressed above.

To the extent RFP#3 could involve an unknown student, non-privileged, responsive documents shall be produced but all personal identifying information shall be redacted and each student shall be assigned a control number such that the court will be able to review and determine from the production and control number which documents pertain to which student, if any. Following review of the produced documents, moving party may identify a future need for disclosure of the individual's name and contact information. Should that occasion arise, the parties are directed to either submit a

proposed stipulated order or to schedule an informal discovery conference. The court understands that the school district cannot disclose confidential student records absent a court order or release.

Documents produced responsive to this request are subject to the above-referenced protective order.

Requests for Production #4-5. These two specifically seek documents pertaining to Principal Clarence Isodore's investigation of ACAC's misconduct.

The court finds the need for disclosure of the investigation report and related writings, including names of any non-victim witnesses (adult or minors) that were interviewed as part of the investigation, outweighs privacy interests of ACAC or any other third party. To the extent that any students other than C.A. or A.P. are identified as potential victims, the personal identifying information of those third parties shall be redacted and a control number utilized as described above.

Should additional discovery be necessary following review of records produced in response to this request, the court understands that a court order or release from the identified student may be necessary. The parties shall submit a stipulated protective order or schedule an informal discovery conference.

If privilege is asserted, a privilege log shall be produced.

Requests for Production #6-10. These ask for all complaints made to Isodore or any other employee about ACAC between 2006 and 2024 and records pertaining to all meetings between Isodore or any VCUSD employee and ACAC or even meetings merely concerning ACAC.

These requests are not limited to sexual misconduct allegations and are overbroad.

Requests for Production #11-12. Plaintiff requests ACAC's personnel file and VCUSD's documents related to its decision to hire ACAC, such as background checks and employment applications.

ACAC has a recognizable privacy interest in his personnel file. (*BRV, Inc. v. Superior Court* (2006) 143 Cal.App.4th 742, 756.) However, given his plea and subsequent conviction, ACAC has no reasonable expectation that his personnel file would remain confidential in the context of an action against him for sexual misconduct in his role as a public employee. (*Rosales v. City of Los Angeles* (2000) 82 Cal.App.4th 419, 429.) ACAC is on notice of this lawsuit and was served by both C.A. and A.P. with their related lawsuits and has not appeared. Given this context, ACAC's privacy interest is outweighed by the C.A.'s need for evidence for her case. The public has a strong interest in ensuring teachers do not sexually abuse students and that cases of abuse are remedied. (Cf. *Marken v. Santa Monica-Malibu Unified School District* (2012) 202 Cal.App.4th 1250, 1275 [public records request supported by strong public interest in

seeing school sexual harassment policy enforced].) The production of records responsive to these requests is subject to the above-described protective order.

If privilege is asserted, a privilege log shall be produced.

Requests for Production #13-14. These requests seek all communications with ACAC, and other writings, regarding his termination or suspension from VCUSD employment.

To the extent these requests are duplication of requests for production 11-12 as those requests seek ACAC's personnel file the court incorporates the prior response. But to the extent that records are not actually maintained in ACAC's physical personnel file that are responsive, the court adopts the same reasoning.

Subject to the above-referenced protective order, VCUSD must produce all non-privileged responsive records. If privilege is asserted, a privilege log shall be produced.

Requests for Production #15-16. Plaintiff requests writings reflecting communication with any students' families concerning ACAC after it received "Plaintiff's report" or "A.P.'s report."

The requests are vague as to the definitions of those terms. VCUSD need not further respond.

Request for Production #17. Plaintiff requests mandated reports to law enforcement concerning ACAC. Penal Code sections 11167 and 11167.5 generally prohibit disclosure of the identities of mandated reporters or the contents of mandated reports. However, subdivision (d)(1) of section 11167 permits disclosure of reporter identities by court order, and section 11167.5, subdivision (b)(1) permits disclosure of contents of reports in circumstances where section 11167 permits disclosure of identities. VCUSD followed the law in refusing to produce these documents without a court order.

As to C.A. and A.P. the court finds that Plaintiff's need for information to advance her case outweighs privacy interests in maintaining the confidentiality of a CPS report or the identity of the reporter. With respect to names of adult or non-victim student witnesses, those names may be produced. With respect to any other potential student victim, personally-identifying information shall be redacted and a control number shall be used.

Documents produced are subject to the above-referenced protective order.

Request for Production #18. Plaintiff seeks communications with Plaintiff's parents regarding this "INCIDENT." The term "INCIDENT" is not unintelligible or ambiguous in context of the first amended complaint. Plaintiff seeks communications between VCUSD and her parents concerning ACAC's alleged sexual abuse of Plaintiff. VCUSD must further respond.

Request for Production #19. This request seeks communications with law enforcement regarding ACAC. As with Request #17 the law permits disclosure of mandated reports via court order. VCUSD's remaining objections are unavailing. VCUSD must further respond.

Request for Production #21. Plaintiff requests all training writings VCUSD provided its employees on their mandatory child abuse reporting duties between 2010 and 2014. This request does not implicate privacy interests. The information sought is discoverable because it relates to Plaintiff's claim that VCUSD personnel did not fulfill their mandatory duties. VCUSD must further respond.

Request for Production #27. Plaintiff asks for documents showing VCUSD's insurance coverage potentially applicable to the course of events described in the 1AC. VCUSD states it has no such documents. This is an adequate response. VCUSD need not further respond.

Form Interrogatories. Form Interrogatory #4.1. This form interrogatory asks if VCUSD possessed any insurance policies applicable to the incident. VCUSD replies "no." This is again a proper and complete answer. VCUSD need not further respond.

Form Interrogatory #4.2. Asked if it is self-insured VCUSD responds "yes," a complete answer. VCUSD need not further respond.

Form Interrogatories #12.1-12.3. These form interrogatories seek identifying and contact information for, interviews with, and statements from all witnesses to the "incident." The term "INCIDENT" is not unintelligible or ambiguous. It is defined as "the circumstances and events surrounding the alleged *accident, injury, or other occurrence* or breach of contract giving rise to this action or proceeding." (Emphasis added.) Here the "INCIDENT" in the context of the action or proceeding, defined by the first amended complaint, is ACAC's alleged sexual abuse of Plaintiff C.A.

Before releasing contact information of any identified individual who is not a current VCUSD employee (for whom work contact information is sufficient), VCUSD shall notify the person(s) of this court order and the opportunity for that individual to object to disclosure of the individual's personal contact information. Should VCUSD receive notice of an objection, the parties shall meet and confer and either submit a stipulated order or schedule a further informal discovery conference.

Conclusion. VCUSD must response to RFP1 in 30 days. With respect to all other discovery, to facilitate these orders, including providing timely notice to individuals of the opportunity to object to disclosure of their contact information, VCUSD must further respond within 60 days. Sanctions were not requested and on this record with these complex issues the court would have found sanctions inappropriate.

TIARRA HEARNE v. THE MERITAGE APARTMENTS et al.
Case No. CU25-07564

MERITAGE's Demurrer and Motion to Strike

TENTATIVE RULING

Defendant THE MERITAGE APARTMENTS and BRIDGE WF II CA MERITAGE LLC (together "MERITAGE") demur to Plaintiff TIARRA HEARNE's complaint alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) breach of the warranty of habitability per Civil Code sections 1941 and 1941.1, (5) breach of the implied warranty of habitability, (6) unlawful business practices, (7) breach of the covenant of quiet enjoyment, (8) violation of Civil Code section 1942.3, (9) violation of Civil Code section 1942.4, (10) violation of the statutory duty to maintain habitable conditions, (11) breach of contract, (12) private nuisance, (13) public nuisance, and (14) premises liability. Summarized, Plaintiff's complaint alleges that Defendants failed to correct a bedbug infestation in Plaintiff's apartment unit rented from MERITAGE and operated and managed by Defendant JONATHAN SLAGER ("SLAGER"). MERITAGE simultaneously moves to strike the complaint's prayer for punitive damages.

The court has not received opposition to the demurrer or motion.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Battery. The elements of battery are (1) the defendant touched the plaintiff or caused the plaintiff to be touched with the intent to harm or offend the plaintiff, (2) the plaintiff did not consent to the touching, (3) the plaintiff was harmed or offended by the defendant's conduct, and (4) a reasonable person in the plaintiff's position would have been offended by the touching. (*So v. Shin* (2013) 212 Cal.App.4th 652, 669.)

Allowing a bedbug infestation to exist does not involve the defendant here causing the plaintiff to be touched with intent to harm or offend. It is not a battery because there is no intent to harm or offend.

Negligence. Failure to correct a known bedbug infestation constitutes negligence. MERITAGE's argument that the cause of action is uncertain because it is not stated in the complaint is not well-taken as the complaint on file states negligence against all defendants on pages 11 to 16.

Intentional Infliction of Emotional Distress. The elements of a cause of action for intentional infliction of emotional distress are (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard for the probability of causing, emotional distress, (2) the plaintiff's suffering severe or extreme emotional distress, and (3) causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) The conduct in question must also be directed at the plaintiff or conducted in the presence of a plaintiff of whom the defendant is aware. (*Id.* at p. 903.) "Outrageous" conduct is that which is so extreme as to "exceed all bounds of that usually tolerated in a civilized community" and "intended to inflict injury or engaged in with the realization that injury will result." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.) Mere insults, indignities, annoyances, and petty oppressions are insufficient to state outrageous conduct. (*Ibid.*) "Severe emotional distress" is "emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it." (*Id.* at p. 1051.)

The complaint does not state intentional infliction of emotional distress as it does not state facts showing that Defendants acted with reckless disregard for the probability of causing distress. While Defendants allegedly failed to correct the bedbug infestation, the complaint alleges that SLAGER summoned pest control promptly on being informed of the bedbugs and arranged for a follow-up pest control visit when the first did not correct the issue. (Complaint at ¶¶ 17-20.) These facts do not show reckless behavior. Plaintiff also does not allege that she suffered severe emotional distress in anything but conclusory language.

Tortious Breach of Implied Warranty of Habitability. The elements for a breach of the implied warranty of habitability cause of action are: (1) the existence of a material defective condition affecting the premises' habitability; (2) notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition; (3) the landlord was given a reasonable time to correct the deficiency; and (4) resulting damages. (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1297.) A warranty of habitability is implied in all residential rental agreements. (See *Green v. Superior Court* (1974) 10 Cal.3d 616, 629.) Breach of the implied warranty of habitability, as any breach of contract, may be regarded as a tortious breach where an injured party demonstrates the defendant's intentional, malicious, and/or outrageous conduct. (*Smith v. David* (1981) 120 Cal.App.3d 101, 112 at fn. 3; *Jones v. Kelly* (1929) 208 Cal. 251, 255-256.) California law defines malice as "either (1) conduct which is intended by the defendant to cause injury to the plaintiff or (2) 'despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.'" (*Mock v. Michigan Millers Mutual Insurance Co.* (1992) 4 Cal.App.4th 306, 330.)

Plaintiff does not sufficiently allege a tortious breach of the implied warranty of habitability as, again, there is no sign of malice in the facts presently alleged about the failure to correct the condition where management promptly summoned pest control.

Unlawful Business Practices. Business and Professions Code section 17200, the “unfair competition law,” prohibits any activity that can be properly called a business practice and at the same time is forbidden by law. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 321.) The unfair competition law essentially borrows violations of other laws and makes them independently actionable when done pursuant to business activity; virtually any law can serve as the predicate for an unfair competition cause of action. (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335.) Where the complaint sufficiently alleges statutory breach of the implied warranty of habitability (the sole cause of action not challenged on demurrer) and more against Defendants, all carried out as part of their practices in managing their rental business and their customer, Plaintiff, it sufficiently alleges unlawful business practices.

Breach of the Covenant of Quiet Enjoyment. The elements of a claim for breach of the covenant of quiet enjoyment are (1) a lease agreement between the parties, (2) the absence of language contrary to the implied covenant that the tenant shall have quiet enjoyment and possession, (3) an act or omission by the landlord or anyone claiming under the landlord that substantially interferes with the tenant’s right to use and enjoy the premises for the purposes contemplated, and (4) damages. (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588-591.)

The parties had a lease agreement affording Plaintiff quiet enjoyment and possession of rental premises. (Complaint at ¶ 126.) Defendants’ failure to correct the bedbug infestation affected her right of quiet enjoyment. This cause of action is sufficiently stated.

Civil Code Section 1942.3. Civil Code section 1942.3 creates a rebuttable evidentiary presumption in an unlawful detainer action that a landlord breached habitability requirements. It does not give rise to a cause of action.

Civil Code Section 1942.4. Civil Code section 1942.4 forbids a landlord from collecting rent, increasing rent, or issuing a three-day notice to pay rent or quit if the premises are in a substandard condition (per reference to other statutes) for at least thirty-five days and a public officer has notified the landlord of his obligation to abate or repair nuisance or substandard conditions. The complaint does not allege facts supporting these statutory requirements and so does not state a violation of Civil Code section 1942.4.

Negligent Violation of Statutory Duty. This cause of action appears to be a simple restatement of Plaintiff’s negligence cause of action and is thus duplicative.

Breach of Contract. To prevail on a cause of action for breach of contract a plaintiff must prove (1) the existence of a lawful contract, (2) his performance or excuse for nonperformance, (3) the defendant’s breach, and (4) resulting damages. (*Richman v.*

Hartley (2014) 224 Cal.App.4th 1182, 1186.) The complaint does not state the terms of the contract between the parties with sufficient specificity to permit a finding that allowing the bedbug infestation to persist breached the contract.

Private and Public Nuisance Law. A “nuisance” is anything which is “injurious to health...or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.” (Civ. Code, § 3479.) A “public nuisance” is a nuisance that “affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480.) A “private nuisance” is generally any nuisance that is not public, but a public nuisance may also be a private nuisance where it causes an interference with an individual’s use and enjoyment of land. (Civ. Code, § 3481 [private nuisance generally]; *Mendez v. Rancho Valencia Resort Partners, LLC* (2016) 3 Cal.App.4th 248, 261-262 (*Mendez*)). To qualify as a nuisance of either kind an interference with collective social interests must be both substantial and unreasonable. (*Mendez* at p. 262 [private]; *Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1547 (*Birke*) [public].) “The requirements of *substantial damage* and *unreasonableness* are not inconsequential.” (*Mendez* at p. 263 [emphasis in original].) Life in society involves unavoidable clashes of individual interests by its nature and so every individual in a community must be expected to put up with a certain amount of annoyance, inconvenience, and interference. (*Ibid.*) With this in mind, substantial interference is found where an ordinary person would be reasonably annoyed or disturbed by the interference and unreasonableness is found where the harm the interference poses outweighs the interference’s social utility. (*Mendez* at p. 263; *Birke* at p. 1548.)

Plaintiff sufficiently pleads private nuisance. She alleges an interference with her use and enjoyment of real property in that her ability to enjoy the rented premises was disturbed by the bedbug infestation. (*Wilson v. Southern California Edison Co.* (2018) 21 Cal.App.5th 786, 802-803 [elements of private nuisance].) She alleges that the invasion of her interests was substantial, meaning that a normal person in the locality would be substantially annoyed or disturbed, because a normal person would be substantially annoyed or disturbed by a bedbug infestation. She alleges that the invasion of the plaintiff’s interests was unreasonable, meaning that the social utility of the invasion does not outweigh the harm to the plaintiff, because there is no apparent social utility to allowing bedbug infestations.

Plaintiff does not state public nuisance, though, because she states no facts that could support finding that the nuisance affected a considerable number of persons. Plaintiff only speaks to her one apartment unit.

Premises Liability. Premises liability is a form of negligence and so requires proof of the existence of a duty owed to the plaintiff, breach thereof, and resulting damages to the plaintiff. (*Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207.) This cause of action is duplicative of Plaintiff’s cause of action for negligence.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc., § 431.10.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;” therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc., § 437, subd. (a).)

Civil Code section 3294, subdivision (a) provides that punitive damages are only available in actions not arising from breach of contract if is “proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” This means that a plaintiff’s pleading asking for punitive damages must plead facts to support a finding of oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “Malice” means conduct intended to cause injury or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others; “oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights; and “fraud” means intentional misrepresentation, deceit, or concealment of a material fact with intention to cause injury. (Civ. Code § 3294, subd. (c).) “Despicable” conduct refers to that which is “base, vile, or contemptible” and is something more than simple willful and conscious disregard for others. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.)

Per the above analysis of the demurrer Plaintiff does not state malicious or oppressive conduct in Defendants’ acts as presently alleged.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiff filed no opposition and so offers no argument as to how she could correct any identified deficiencies.

Conclusion. MERITAGE’s unopposed demurrer is sustained without leave to amend with regard to the causes of action for battery, intentional infliction of emotional distress, tortious breach of the implied warranty of habitability, violation of Civil Code sections 1942.3 and 1942.4, negligent violation of statutory duty, breach of contract, public nuisance, and premises liability.

MERITAGE’s demurrer is overruled with regard to the causes of action for negligence, unlawful business practices, breach of the covenant of quiet enjoyment, and private nuisance.

MERITAGE's unopposed motion to strike is granted. The complaint's prayer for punitive damages is ordered struck.

PORTFOLIO RECOVERY v. MARISEL ESPINOZA
Case No. FCM 171055

Motion to Set Aside/Vacate Dismissal and Enter Judgment

TENTATIVE RULING:

Plaintiff moves **for a second time** to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation. Plaintiff's motion is again served on Defendant by mail.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant ESPINOZA's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc., § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

Plaintiff already knows this answer because Plaintiff has been told this answer twice before in this same case. On June 16, 2022, Judge Carringer advised Plaintiff of this due process issue and continued the motion to enter judgment to August 11, 2022 in order to permit Plaintiff to cure this issue. On August 11, 2022, Plaintiff had taken no action to cure the issue, did not appear and the motion was denied.

There is no good cause for Plaintiff to refile a motion that was previously denied (after a continuance to permit the law firm to cure the defect) with no change of circumstances. An Order to Show Cause shall be issued to Hunt & Henriques, LLP why it should not be sanctioned up to \$1,000 for misuse of the court process by refiling motions that have previously been adjudicated with no change in circumstance. The managing partner for Plaintiff's law firm shall personally appear in response to Order to Show Cause to explain this law firm's conduct and shall file a responsive declaration 15 days prior to the hearing.

The Order to Show Cause to Hunt and Henriques LLP is scheduled for **September 29, 2026 at 8:31 a.m.**

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5EazI6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002